

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

----- X
COURTNEY TURNER,

Plaintiff,

-against-

CITY OF NEW YORK, NYPD Detective VICTOR
RODRIGUES, in his individual capacity, and NYPD
Officers JOHN DOE 1-4, in their individual capacities,

Defendants.
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VERIFIED COMPLAINT

Index No. 152843/2019

Plaintiff COURTNEY TURNER, by and through his attorneys, Jason Leventhal, Esq., and
Joshua S. Moskovitz, Esq., as and for his complaint alleges as follows:

JURISDICTION

1. Plaintiff asserts claims under New York State common law for a violation of his civil rights and for violations of his rights under Article 1 § 12 of the New York State Constitution.
2. The amount of damages sought exceeds the jurisdiction of all lower courts which would otherwise have jurisdiction.

VENUE

3. Venue is proper in Richmond County pursuant to C.P.L.R. § 503(3) as this is an action against the City of New York and its officers, and Richmond County is where the events giving rise to this action took place.

JURY DEMAND

4. Plaintiff demands a trial by jury in this action on each and every one of his claims for which jury trial is legally available.

THE PARTIES

5. Plaintiff COURTNEY TURNER is a citizen of the United States and of the State of New York.

6. At all relevant times, Plaintiff was a resident of Richmond County, New York.

7. Defendant THE CITY OF NEW YORK (“the City”) is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain, manage, supervise, and control a police department, and does maintain the New York City Police Department (“NYPD”).

8. The NYPD is a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the governing law, rules, and regulations of the City.

9. Upon information and belief, at all relevant times, defendants NYPD Detective VICTOR RODRIGUES and NYPD Officers JOHN DOE 1-4 were and are citizens of the United States and the State of New York.

10. At all relevant times, RODRIGUES and JOHN DOE 1-4 were employed by the City and acted under color of law.

11. At all relevant times, RODRIGUES and JOHN DOE 1-4 acted in the course and scope of their duties and authority as officers, agents servants and employees of the NYPD and the City.

12. At all relevant times, RODRIGUES was a detective and JOHN DOE 1-4 were police officers in the 121st Precinct, which is located in Richmond County.

13. At all relevant times, RODRIGUES and JOHN DOE 1-4 violated plaintiff's clearly established rights Article 1 § 12 of the New York State Constitution, of which a reasonable law enforcement officer would have known.

COMPLIANCE WITH NEW YORK GENERAL MUNICIPAL LAW

14. Plaintiff served his Notice of Claim upon the City of New York by electronic delivery as prescribed by the Office of the New York City Comptroller on November 20, 2018, within ninety days of plaintiff's claims.

15. Defendant City acknowledged receipt of plaintiff's claim and assigned it claim number 2018PI032830.

16. On or about October 29, 2019, Defendant City conducted an examination of Plaintiff pursuant to New York General Municipal Law § 50-h.

17. More than thirty days have elapsed since service of Plaintiff's notice of claim and supplemental notice of claim and adjustment or payment of Plaintiff's claim has been neglected.

18. This action was commenced within one-year and ninety-days after the events giving rise to plaintiff's claims.

STATEMENT OF FACTS

1. On or before September 21, 2018, defendants VICTOR RODRIGUES and NYPD Police Officers JOHN DOE 1 through 4 conspired to coerce plaintiff COURTNEY TURNER to identify the perpetrator of a shooting that occurred on September 19, 2018 by falsely arresting plaintiff and then maliciously prosecuting plaintiff for a burglary that occurred on September 1, 2018.

2. On September 21, 2018, at approximately 5:30 a.m., in the NYPD's 121st Precinct stationhouse, 970 Richmond Avenue, Staten Island, New York, NYPD police officers handcuffed and imprisoned plaintiff based on false statements from defendant RODRIGUES and/or JOHN DOE 1 through 4.

3. Later that morning, JOHN DOE 1 and 2 questioned plaintiff about the September 19, 2018 shooting. Plaintiff truthfully explained to the officers that he did not know who fired the shots and did not see where the shots had come from.

4. RODRIGUES and JOHN DOE 1 through 4 conspired to coerce plaintiff to identify the shooter in question, whom plaintiff did not know, by threatening to charge plaintiff with the burglary if plaintiff did not identify the shooter.

5. RODRIGUES and JOHN DOE 1 through 4 knew that they did not have probable cause to arrest plaintiff for the burglary because they had seen a video (or knew of its contents), showing the perpetrator entering the premises, and the video definitively exonerated plaintiff.

6. At the 121st Precinct, JOHN DOE 1 and 2 falsely told plaintiff that plaintiff's DNA and fingerprints were found at the scene of the burglary and again questioned plaintiff about the shooting. Plaintiff repeated that he did not see the shooter.

7. JOHN DOE 1 and 2 knew that plaintiff's fingerprints and DNA were not found at the scene of the burglary.

8. JOHN DOE 3 and 4 also questioned plaintiff about the shooting and told plaintiff, in sum and substance, that they could "make the burglary charge go away" if plaintiff identified the shooter. Again, plaintiff truthfully explained that he did not see the shooter.

9. Thereafter, RODRIGUES falsely told plaintiff that plaintiff's fingerprints and DNA were found at the scene of the burglary and that a video recorded plaintiff committing the burglary.

RODRIGUES told plaintiff, in sum and substance, that plaintiff would not be charged with the burglary if he identified the shooter. Plaintiff again explained that he did not see the shooter.

10. RODRIGUES knew that plaintiff's fingerprints and DNA were not found at the scene of the burglary, and that the video of the perpetrator committing the burglary exonerated plaintiff.

11. RODRIGUES and JOHN DOE 1 through 4 conspired to forward false allegations to the Richmond County District Attorney's Office ("the DA's Office") which resulted in the filing of false charges against plaintiff.

12. In furtherance of said conspiracy, RODRIGUES falsely informed prosecutors at the DA's Office, and swore to false allegations in a Criminal Court Complaint, that on September 1, 2018, plaintiff entered and remained inside a dwelling and was reaching for and attempting to remove property from inside the dwelling.

13. RODRIGUES knew these allegations were false.

14. As a result of RODRIGUES's false allegations, the DA's Office charged plaintiff with a felony burglary in Richmond County Criminal Court under docket number CR-006345018RI.

15. As a result of RODRIGUES's false allegations, plaintiff was arraigned and Judge Catherine M. DiDomenico set bail.

16. Plaintiff could not post bail and was incarcerated until September 27, 2018, when the DA's Office agreed to plaintiff's release and announced in court that plaintiff's fingerprints were not found at the scene of the burglary.

17. The DA's Office also informed plaintiff by letter that a witness who observed the perpetrator did not identify plaintiff in a photo array as the perpetrator of the burglary.

18. Nonetheless, plaintiff was compelled to return to Richmond County Criminal Court on two subsequent occasions to defend himself against the baseless criminal charges.

19. On March 22, 2019, all charges filed against plaintiff were dismissed and sealed.

20. RODRIGUES and JOHN DOE 1 through 4 knew that plaintiff was arrested in the absence of probable cause and prosecuted based on false, fabricated evidence, and RODRIGUES and JOHN DOE 1 through 4 defendants directly participated in said arrest, prosecution and fabrication of evidence.

21. All of the aforementioned acts of defendants, their agents, servants and employees were carried out under the color of state law.

22. All of the aforementioned acts deprived plaintiff of the rights, privileges and immunities guaranteed to him by the common law and constitution of the State of New York.

23. The acts complained of were carried out by the aforementioned defendants and individuals in their capacities as police officers with the NYPD and as agents and employees of the CITY OF NEW YORK.

24. As a result of the foregoing, Plaintiff suffered, *inter alia*, the loss of liberty, psychological injuries, pain and suffering, emotional distress, financial loss, and the deprivation of his constitutional rights.

FIRST CAUSE OF ACTION
False Arrest/Imprisonment

25. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

26. Defendants RODRIGUES and JOHN DOE 1 through 4, through the foregoing acts,

caused plaintiff to be wrongfully detained without good faith, reasonable suspicion, probable cause, or legal justification.

27. Plaintiff was aware of this detention and did not consent to it.

28. Defendants RODRIGUES and JOHN DOE 1 through 4 committed the foregoing acts intentionally, willfully, and with malicious disregard for plaintiff's rights and are therefore liable for punitive damages.

29. THE CITY is vicariously liable for the conduct of defendants RODRIGUES and JOHN DOE 1 through 4.

SECOND CAUSE OF ACTION

Assault

30. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

31. Defendants RODRIGUES and JOHN DOE 1 through 4 placed or caused plaintiff to be placed in apprehension of imminent harmful and offensive bodily contact by causing him to be handcuffed, and imprisoned.

32. As a result of defendants RODRIGUES and JOHN DOE 1 through 4's conduct, plaintiff was placed in apprehension of imminent harmful and offensive bodily contact and has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

33. THE CITY is vicariously liable for the conduct of defendants RODRIGUES and JOHN DOE 1 through 4.

THIRD CAUSE OF ACTION**Battery**

34. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

35. Defendants RODRIGUES and JOHN DOE 1 through 4 made offensive contact with or caused plaintiff to suffer the offensive contact of handcuffing without privilege or consent.

36. As a result of defendants RODRIGUES and JOHN DOE 1 through 4's conduct, plaintiff suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

37. The City is vicariously liable for the conduct of defendants RODRIGUES and JOHN DOE 1 through 4.

FOURTH CAUSE OF ACTION**Malicious Prosecution**

38. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

39. A criminal proceeding was commenced against plaintiff in Richmond County Criminal Court.

40. Defendant RODRIGUES was responsible for initiating the criminal proceeding.

41. Defendants RODRIGUES and JOHN DOE 1 through 4 were aware there was not probable cause that plaintiff had committed any crime or offense.

42. The criminal proceeding was terminated in plaintiff's favor when the charges against him were dismissed.

43. The proceeding was brought with malice, which is shown by the above-stated facts

establishing a lack of probable cause.

44. Defendants RODRIGUES and JOHN DOE 1 through 4 committed the foregoing acts intentionally, willfully, and with malicious disregard for plaintiff's rights and are therefore liable for punitive damages.

45. As a result of defendants RODRIGUES and JOHN DOE 1 through 4's conduct, plaintiff was maliciously prosecuted without probable cause.

46. THE CITY is vicariously liable for the conduct of Defendants RODRIGUES and JOHN DOE 1 through 4.

FIFTH CAUSE OF ACTION
New York State Constitutional Violations

47. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

48. Defendants RODRIGUES and JOHN DOE 1 through 4 subjected plaintiff to the foregoing acts and omissions without due process of law, thereby depriving plaintiff of rights, privileges, and immunities guaranteed by Article 1 § 12 of the New York State Constitution.

49. As a direct and proximate result of defendants RODRIGUES and JOHN DOE 1 through 4's deprivations of plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution, plaintiff suffered the injuries and damages set forth above.

50. THE CITY is vicariously liable for the conduct of defendants RODRIGUES and JOHN DOE 1 through 4.

WHEREFORE, plaintiff demands judgment and prays for the following relief, jointly and severally, against the defendants:

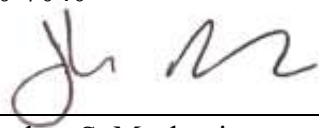
- (A) full and fair compensatory damages in an amount to be determined by a jury;
- (B) punitive damages against Defendants RODRIGUES and JOHN DOE 1-4 in an amount to be determined by a jury;
- (C) reasonable attorneys' fees;
- (D) the costs and disbursements of this action;
- (E) interest; and
- (F) such other and further relief as appears just and proper.

Dated: New York, New York
September 25, 2020

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By: 
JASON LEVENTHAL

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By: 
Joshua S. Moskowitz

Attorneys for Plaintiff Courtney Turner

ATTORNEY VERIFICATION

STATE OF NEW YORK)
 : ss.:
COUNTY OF NEW YORK)

JASON LEVENTHAL, being duly sworn, deposes and says:

I am an attorney for the plaintiff in the within action and my office is located at 125 Maiden Lane, Suite 5C, New York, New York 10038, which is within the County of New York. This verification is made by me because the plaintiff, Courtney Turner, is not within the County of New York, which is the county where I have my office.

I have read the foregoing Verified Complaint and know its contents. The factual allegations are made upon information and belief, and are based on my inquiries, the contents of our files, and discussions I have had with plaintiff. The Complaint is true to my knowledge, except as to matters alleged on information and belief, and as to those matters, I believe them to be true.

Dated: September 25, 2020



JASON LEVENTHAL